

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Campos	Team: Squad #16	CCRB Case #: 201610405	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 03/31/2016 12:00 AM, Tuesday, 05/31/2016 10:30 PM	Location of Incident: East 149th Street and Bruckner Boulevard	18 Mo. SOL 11/30/2017	Precinct: 40		
Date/Time CV Reported Mon, 12/19/2016 10:30 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Wed, 12/21/2016 2:02 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Niazul Haque	03002	943349	040 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Niazul Haque	Discourtesy: Police Officer Niazul Haque spoke discourteously to § 87(2)(b)			A . Unsubstantiated	
B . POM Niazul Haque	Off. Language: Police Officer Niazul Haque made remarks to § 87(2)(b) based upon race.			B . Unsubstantiated	

Case Summary

On December 19, 2016, § 87(2)(b) filed his complaint at the 40th Precinct stationhouse. The complaint was forwarded to the CCRB, where it was received on December 21, 2016.

At approximately 10:30 PM on May 31, 2016, § 87(2)(b) was driving northbound on Bruckner Boulevard in the Bronx. § 87(2)(b) was pulled over at the intersection of East 149th Street and Bruckner Boulevard by Police Officer Niazul Haque, of the 40th Precinct. As PO Haque approached the vehicle, he allegedly stated to § 87(2)(b) “Give me your fucking license and registration.” § 87(2)(b) asked what the problem was, and PO Haque stated, “Didn’t you fucking listen to me?” § 87(2)(b) provided his license to PO Haque, but was unable to locate the registration or insurance for the vehicle because he was driving his friend’s vehicle. PO Haque stated, “Don’t you listen to the law? I am the fucking law.” § 87(2)(b) asked PO Haque to calm down, and told him there was no need to be swearing. In response, PO Haque stated, “Didn’t you fucking listen to me?” (**Allegation A**). At some point during the stop, PO Haque stated to § 87(2)(b) “Don’t you listen, you colored fuck?” or, “Don’t you listen, you color fucked?” (**Allegation B**). § 87(2)(b) was not sure which of the two statements PO Haque used. § 87(2)(b) requested that PO Haque call a supervisor to the scene. PO Haque stated, “I’m not fucking getting anyone,” (**Allegation A, continued**). PO Haque returned to his vehicle while § 87(2)(b) waited in his.

After approximately one hour passed, PO Haque returned to § 87(2)(b) vehicle. PO Haque issued § 87(2)(b) three summons for speeding, not having insurance, and not having a registered vehicle.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation in his sworn statement. § 87(2)(b) rejected mediation § 87(2)(b)
- On March 9, 2017, the Comptroller’s office confirmed that a Notice of Claim has not been filed by or behalf of § 87(2)(b) in regards to this incident (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed six complaints with the CCRB, two of which are duplicate complaints (Board Review 05).
 - § 87(2)(b)

- § 87(2)(b)
-

-

- PO Haque has been a member of service for ten years. PO Haque has eleven allegations against him stemming from six CCRB complaints. PO Haque has one previous allegation of discourteous word use against him, and no complaints of offensive language. § 87(2)(g) None of the allegations against PO Haque for any case were substantiated.

Potential Issues

- When § 87(2)(b) provided his sworn statement, he testified that his incident happened on March 31, 2016. However, § 87(2)(b) summons from the incident showed that the incident took place on May 31, 2016 (Board Review 06).

Findings and Recommendations

Allegation A—Discourtesy: Police Officer Niazul Haque spoke discourteously to § 87(2)(b)

Allegation B—Offensive Language: Police Officer Niazul Haque made remarks to § 87(2)(b) based on his race.

In his testimony to the CCRB, § 87(2)(b) alleged that while he was pulled over by PO Haque, several discourtesies were used against him. § 87(2)(b) alleged that PO Haque stated, “Give me your fucking license and registration,” “Didn’t you fucking listen to me?” and “Don’t you listen to the law? I am the fucking law.” When § 87(2)(b) asked for a supervisor, PO Haque allegedly stated to him, “I’m not fucking getting anyone.”

§ 87(2)(b) also alleged that PO Haque used offensive language during the incident. Although § 87(2)(b) could not recall the exact moment that PO Haque used offensive language against him, § 87(2)(b) alleged that PO Haque stated, “Don’t you listen, you colored fuck?” or, “Don’t you listen, you color fucked?” § 87(2)(b) was not sure what phrasing PO Haque used, but alleged that PO Haque used one of the statements. § 87(2)(b) interpreted statements as racist (Board Review 01).

Although in his phone statement § 87(2)(b) did not allege that PO Haque asked him, “Didn’t you fucking listen?” the allegations in § 87(2)(b) phone statement and sworn statement were generally consistent (Board Review 07).

In his testimony to the CCRB, PO Haque stated that he did not use any discourteous language while interacting with § 87(2)(b) PO Haque denied having said, “Give me your fucking license

and registration,” “Didn’t you fucking listen to me?” and “Don’t you listen to the law? I am the fucking law.” PO Haque stated that at no point did § 87(2)(b) request a supervisor. PO Haque also denied ever having said, “I’m not fucking getting anyone,” to § 87(2)(b) in response to a request for a supervisor.

PO Haque also stated that he did not make any statement based on § 87(2)(b) race. PO Haque denied stating, “Don’t you listen, you colored fuck?” or, “Don’t you listen, you color fucked?” (Board Review 08).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date